

25PSCV03534 25PSCV03534

County: los-angeles

Division: Civil Law and Motion

Department: H

Hearing date: 2026-09-24

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Case Number: 25PSCV03534 Hearing Date: September 24, 2026 Dept: H

Citibank, N.A., v. MJCH

Logistics, et al, Case No. 25PSCV03534

ORDER ON

MOTIONS TO BE RELIEVED

1. Counsel for Defendant MJCH Logistics'

(i.e., Law Offices of Michael A. Peart) Motion to be Relieved as Counsel is

GRANTED, effective upon the

filing of the proof of service reflecting

service of the signed order upon Client at Client's last known address. The

Court will set an Order to Show Cause Re: Representation of Corporation for December

7, 2026, at 8:30 a.m..

2. Counsel for Defendant Mary Hui's (i.e.,

Law Offices of Michael A. Peart) Motion to be Relieved as Counsel is GRANTED, effective

upon the filing of the proof

of service reflecting service of the

signed order upon Client at Client's last known address.

Background

Plaintiff Citibank, N.A. ("Plaintiff") alleges as

follows. On July 7, 2021, MJCH Logistics ("MJCH") executed and delivered to

Plaintiff a Commercial Credit Application/Agreement wherein MJCH requested a

business credit account from Plaintiff in the amount of \$100,000.00. This

request was approved by Plaintiff on August 3, 2021. Mary Hui ("Hui") executed

a personal guaranty in connection with the above. On May 4, 2025, MJCH failed

to make payments due and owing.

On

September 30, 2025, Plaintiff filed a complaint, asserting causes of action against MJCH, Hui and Does 1-100 for: (1) Breach of Written Agreement, (2) Breach of Personal Guaranty, (3) Money Lent, and (4) Account Stated.

On

December 10, 2025, MJCH's and Hui's defaults were entered.

On

June 9, 2026, the Court granted MJCH's and Hui's Motion to Set Aside Default.

On

June 12, 2026 and June 16, 2026, the Law Offices of Michael A. Peart ("Counsel Peart") filed a Motion to be Relieved as Counsel for MJCH and Hui, respectively.

On

July 7, 2026, the Court continued the instant hearings to allow for compliance with notice requirements pursuant to Code of Civil Procedure sections 1005, subdivision (b), and 1010.6, subdivision (a)(3)(B).

A

Case Management Conference is set for the same day as the instant hearing, September 24, 2026.

Discussion

Counsel Peart seeks to be relieved as counsel of record for MJCH and Hui ("Clients").

The

court has discretion to allow an attorney to withdraw, and such a motion should be granted provided that there is no prejudice to the client and it does not disrupt the orderly process of justice. (See *Ramirez v. Sturdevant* (1994) 21 Cal.App.4th 904, 915; *People v. Prince* (1968) 268 Cal.App.2d 398.)

California

Rules of Court, rule 3.1362 requires the following: (1) a notice of motion and motion directed to the client (made on the Notice of Motion and Motion to Be Relieved as Counsel—Civil form (MC-051)); (2) a declaration stating in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure § 284(2) is brought instead of filing a consent under section 284(1) (made on the Declaration in Support of Attorney's Motion to Be Relieved as Counsel—Civil form (MC-052)); (3) service of the notice of motion and motion, the declaration, and the proposed order on the client and on all other parties who have appeared in the case; and (4) a proposed order relieving counsel (prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel—Civil form (MC-053)). The court may delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court. (Cal. Rules Court, rule 3.1362(e).)

At the time of the previously scheduled hearing on July 7, 2026, the Court observed that the June 12, 2026 and June 16, 2026 proofs of service reflected service on Plaintiff only. On July 31, 2026, the Court continued the instant hearings, ordering Counsel Peart to file the proofs of service within one week. On August 4, 2026, Counsel Peart filed proofs of service that indicate service on Clients, pursuant to Court order. On August 10, 2026, the Court continued the motions to the instant date to allow for sufficient notice of the moving papers and relevant Minute Orders on Clients.

Counsel

Peart has filed an MC-051, MC-052, and MC-053 for both MJCH and Hui. He represents that Clients “repeatedly reject[] legal advice and insist[] on pursuing positions counsel cannot ethically advance.” Counsel Peart also represents that the attorney-client relationship has irreconcilably broken down such that he can no longer effectively represent Clients’ interest in this action.

The

Court determines that the requirements of Rules of Court Rule 3.1362 enumerated above have been sufficiently met. As such, the motions are granted, effective upon the filing of the proofs of service reflecting service of the signed order on Clients. The Court will set an Order to Show Cause Re Representation of Corporation as to MJCH Logistics for December 7, 2026, at 8:30 a.m. If MJCH Logistics does not obtain new counsel by the time of that hearing, the Court may strike its answer and enter default.